

STATE OF NEW YORK

3981--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 30, 2025

Introduced by M. of A. MAGNARELLI, STERN, WOERNER, BUTTENSCHON, BURDICK, STIRPE, McMAHON, JACOBSON, DINOWITZ, SHIMSKY, DE LOS SANTOS, SIMON, LEVENBERG, BERGER, PHEFFER AMATO, CONRAD, McDONOUGH, FALL, LUNSFORD, DAVILA, JONES, TAPIA, GRIFFIN, McDONALD, YEGER, COLTON, STECK, KASSAY, SEAWRIGHT, SCHIAVONI -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to procedures relating to driving while ability impaired by drugs; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 114-a of the vehicle and traffic law, as amended by
2 chapter 92 of the laws of 2021, is amended to read as follows:

3 § 114-a. Drug. The term "drug" when used in this chapter, means and
4 includes any substance listed in section thirty-three hundred six of the
5 public health law and cannabis and concentrated cannabis as defined in
6 section 222.00 of the penal law and any substance or combination of
7 substances that impair, to any extent, physical or mental abilities.

8 § 2. Section 119-b of the vehicle and traffic law is renumbered 119-c
9 and a new section 119-b is added to read as follows:

10 § 119-b. Impaired. Impairment is reached when a driver has voluntarily
11 consumed or ingested a substance or combination of substances to the
12 extent that the driver has impaired, to any extent, the physical and
13 mental abilities which a driver is expected to possess in order to oper-
14 ate a vehicle as a reasonable and prudent driver.

15 § 3. The vehicle and traffic law is amended by adding a new section
16 120-a to read as follows:

17 § 120-a. Intoxication. Intoxication is a greater degree of impairment
18 which is reached when a driver has voluntarily consumed or ingested a
19 substance or combination of substances to the extent that the driver is

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00438-06-5

incapable, to a substantial extent, of employing the physical and mental abilities which a driver is expected to possess in order to operate a vehicle as a reasonable and prudent driver.

§ 4. Subdivisions 1, 2 and 3 of section 1194 of the vehicle and traffic law, as added by chapter 47 of the laws of 1988, paragraph (a) of subdivision 2 as amended by chapter 196 of the laws of 1996, paragraphs (b) and (c) of subdivision 2 as amended by chapter 489 of the laws of 2017, clause (A) of subparagraph 1, subparagraphs 2 and 3 of paragraph (b) and subparagraphs 1, 2 and 3 of paragraph (c) of subdivision 2 as amended by chapter 27 of the laws of 2018, subparagraphs 1 and 2 of paragraph (d) of subdivision 2 as amended by chapter 732 of the laws of 2006, and item (iii) of clause c of subparagraph 1 of paragraph (d) of subdivision 2 as amended by section 37 of part LL of chapter 56 of the laws of 2010, are amended to read as follows:

1. Arrest and field testing. (a) Arrest. Notwithstanding the provisions of section 140.10 of the criminal procedure law, a police officer may, without a warrant, arrest a person, in case of a violation of subdivision one of section eleven hundred ninety-two of this article, if such violation is coupled with an accident or collision in which such person is involved, which in fact has been committed, though not in the police officer's presence, when the officer has reasonable cause to believe that the violation was committed by such person.

(b) Field testing. Every person operating a motor vehicle which has been involved in an accident or which is operated in violation of any of the provisions of this chapter shall, at the request of a police officer, submit to a breath test and/or oral/bodily fluid test to be administered by the police officer. If such test indicates that such operator has consumed alcohol or a drug or drugs, the police officer may request such operator to submit to a chemical test and/or an evaluation conducted by a drug recognition expert in the manner set forth in subdivision two of this section.

(c) Refusal to submit to a breath test and/or oral/bodily fluid test pursuant to paragraph (b) of this subdivision shall be a traffic infraction.

2. Chemical tests and drug recognition evaluations. (a) When authorized. Any person who operates a motor vehicle in this state shall be deemed to have given consent to an evaluation conducted by a certified drug recognition expert, and/or a chemical test of one or more of the following: breath, blood, urine, or ~~[saliva]~~ oral/bodily fluid, for the purpose of determining the alcoholic and/or drug content ~~[of the blood]~~ provided that such test is administered by or at the direction of a police officer with respect to a chemical test of breath, urine or ~~[saliva]~~ oral/bodily fluid or, with respect to a chemical test of blood, at the direction of a police officer:

(1) having reasonable grounds to believe such person to have been operating in violation of any subdivision of section eleven hundred ninety-two of this article and within two hours after such person has been placed under arrest for any such violation; or having reasonable grounds to believe such person to have been operating in violation of section eleven hundred ninety-two-a of this article and within two hours after the stop of such person for any such violation,

(2) within two hours after a breath test, as provided in paragraph (b) of subdivision one of this section, indicates that alcohol has been consumed by such person and in accordance with the rules and regulations established by the police force of which the officer is a member;

(3) for the purposes of this paragraph, "reasonable grounds" to believe that a person has been operating a motor vehicle after having consumed alcohol in violation of section eleven hundred ninety-two-a of this article shall be determined by viewing the totality of circumstances surrounding the incident which, when taken together, indicate that the operator was driving in violation of such subdivision. Such circumstances may include any visible or behavioral indication of alcohol consumption by the operator, the existence of an open container containing or having contained an alcoholic beverage in or around the vehicle driven by the operator, or any other evidence surrounding the circumstances of the incident which indicates that the operator has been operating a motor vehicle after having consumed alcohol at the time of the incident; or

(4) notwithstanding any other provision of law to the contrary, no person under the age of twenty-one shall be arrested for an alleged violation of section eleven hundred ninety-two-a of this article. However, a person under the age of twenty-one for whom a chemical test and/or an evaluation conducted by a certified drug recognition expert is authorized pursuant to this paragraph may be temporarily detained by the police solely for the purpose of requesting or administering such chemical test and/or an evaluation conducted by a certified drug recognition expert whenever arrest without a warrant for a petty offense would be authorized in accordance with the provisions of section 140.10 of the criminal procedure law or paragraph (a) of subdivision one of this section.

(a-1) For the purposes of this section the driver shall not be deemed to consent to answer custodial questions as part of an evaluation conducted by a certified drug recognition expert pursuant to paragraph (a) of this subdivision and declining to answer such questions shall not constitute a refusal to submit to the evaluation when the driver submits to the other portions of such evaluation and no report of refusal shall be made pursuant to paragraph (b) of this subdivision and the driver's license shall not be revoked pursuant to paragraphs (c) and (d) of this subdivision solely on the basis of the driver declining to answer such custodial questions.

(b) Report of refusal. (1) If: (A) such person having been placed under arrest; or (B) after a breath and/or oral/bodily fluid test indicates the presence of alcohol and/or a drug or drugs in the person's system; or (C) with regard to a person under the age of twenty-one, there are reasonable grounds to believe that such person has been operating a motor vehicle after having consumed alcohol in violation of section eleven hundred ninety-two-a of this article; and having thereafter been requested to submit to such chemical test and/or an evaluation conducted by a certified drug recognition expert and having been informed that the person's license or permit to drive and any non-resident operating privilege shall be immediately suspended and subsequently revoked, or, for operators under the age of twenty-one for whom there are reasonable grounds to believe that such operator has been operating a motor vehicle after having consumed alcohol in violation of section eleven hundred ninety-two-a of this article, shall be revoked for refusal to submit to such chemical test or any portion thereof, and/or an evaluation conducted by a certified drug recognition expert or any portion thereof whether or not the person is found guilty of the charge for which such person is arrested or detained, refuses to submit to such chemical test or any portion thereof, ~~[unless a court order has been granted pursuant to subdivision three of this section,]~~ and/or an evalu-

1 ation conducted by a certified drug recognition expert or any portion
2 thereof the test shall not be given and a written report of such refusal
3 shall be immediately made by the police officer before whom such refusal
4 was made. Such report may be verified by having the report sworn to, or
5 by affixing to such report a form notice that false statements made
6 therein are punishable as a class A misdemeanor pursuant to section
7 210.45 of the penal law and such form notice together with the
8 subscription of the deponent shall constitute a verification of the
9 report.

10 (2) The report of the police officer shall set forth reasonable
11 grounds to believe such arrested person or such detained person under
12 the age of twenty-one had been driving in violation of any subdivision
13 of section eleven hundred ninety-two or eleven hundred ninety-two-a of
14 this article, that said person had refused to submit to such chemical
15 test, ~~[and that no chemical test was administered pursuant to the~~
16 ~~requirements of subdivision three of this section]~~ or an evaluation
17 conducted by a certified drug recognition expert or any portion thereof.
18 The report shall be presented to the court upon arraignment of an
19 arrested person, provided, however, in the case of a person under the
20 age of twenty-one, for whom a test was authorized pursuant to the
21 provisions of subparagraph two or three of paragraph (a) of this subdi-
22 vision, and who has not been placed under arrest for a violation of any
23 of the provisions of section eleven hundred ninety-two of this article,
24 such report shall be forwarded to the commissioner within forty-eight
25 hours in a manner to be prescribed by the commissioner, and all subse-
26 quent proceedings with regard to refusal to submit to such chemical test
27 and/or an evaluation conducted by a certified drug recognition expert by
28 such person shall be as set forth in subdivision three of section eleven
29 hundred ninety-four-a of this article.

30 (3) For persons placed under arrest for a violation of any subdivision
31 of section eleven hundred ninety-two of this article, the license or
32 permit to drive and any non-resident operating privilege shall, upon the
33 basis of such written report, be temporarily suspended by the court
34 without notice pending the determination of a hearing as provided in
35 paragraph (c) of this subdivision. Copies of such report must be trans-
36 mitted by the court to the commissioner and such transmittal may not be
37 waived even with the consent of all the parties. Such report shall be
38 forwarded to the commissioner within forty-eight hours of such arraign-
39 ment.

40 (4) The court or the police officer, in the case of a person under the
41 age of twenty-one alleged to be driving after having consumed alcohol,
42 shall provide such person with a scheduled hearing date, a waiver form,
43 and such other information as may be required by the commissioner. If a
44 hearing, as provided for in paragraph (c) of this subdivision, or subdi-
45 vision three of section eleven hundred ninety-four-a of this article, is
46 waived by such person, the commissioner shall immediately revoke the
47 license, permit, or non-resident operating privilege, as of the date of
48 receipt of such waiver in accordance with the provisions of paragraph
49 (d) of this subdivision.

50 (c) Hearings. Any person whose license or permit to drive or any non-
51 resident driving privilege has been suspended pursuant to paragraph (b)
52 of this subdivision is entitled to a hearing in accordance with a hear-
53 ing schedule to be promulgated by the commissioner. If the department
54 fails to provide for such hearing fifteen days after the date of the
55 arraignment of the arrested person, the license, permit to drive or
56 non-resident operating privilege of such person shall be reinstated

1 pending a hearing pursuant to this section. The hearing shall be limited
2 to the following issues: (1) did the police officer have reasonable
3 grounds to believe that such person had been driving in violation of any
4 subdivision of section eleven hundred ninety-two of this article; (2)
5 did the police officer make a lawful arrest of such person; (3) was such
6 person given sufficient warning, in clear or unequivocal language, prior
7 to such refusal that such refusal to submit to such chemical test or any
8 portion thereof and/or an evaluation conducted by a certified drug
9 recognition expert or any portion thereof, would result in the immediate
10 suspension and subsequent revocation of such person's license or operat-
11 ing privilege whether or not such person is found guilty of the charge
12 for which the arrest was made; and (4) did such person refuse to submit
13 to such chemical test or any portion thereof and/or an evaluation
14 conducted by a certified drug recognition expert or any portion thereof.
15 A refusal to answer custodial questions shall not be considered a
16 refusal for the purposes of this section pursuant to paragraph (a-1) of
17 this subdivision. If, after such hearing, the hearing officer, acting on
18 behalf of the commissioner, finds on any one of said issues in the nega-
19 tive, the hearing officer shall immediately terminate any suspension
20 arising from such refusal. If, after such hearing, the hearing officer,
21 acting on behalf of the commissioner finds all of the issues in the
22 affirmative, such officer shall immediately revoke the license or permit
23 to drive or any non-resident operating privilege in accordance with the
24 provisions of paragraph (d) of this subdivision. A person who has had a
25 license or permit to drive or non-resident operating privilege suspended
26 or revoked pursuant to this subdivision may appeal the findings of the
27 hearing officer in accordance with the provisions of article three-A of
28 this chapter. Any person may waive the right to a hearing under this
29 section. Failure by such person to appear for the scheduled hearing
30 shall constitute a waiver of such hearing, provided, however, that such
31 person may petition the commissioner for a new hearing which shall be
32 held as soon as practicable.

33 (d) Sanctions. (1) Revocations. a. Any license which has been revoked
34 pursuant to paragraph (c) of this subdivision shall not be restored for
35 at least one year after such revocation, nor thereafter, except in the
36 discretion of the commissioner. However, no such license shall be
37 restored for at least eighteen months after such revocation, nor there-
38 after except in the discretion of the commissioner, in any case where
39 the person has had a prior revocation resulting from refusal to submit
40 to a chemical test and/or an evaluation conducted by a certified drug
41 recognition expert or any portion thereof, or has been convicted of or
42 found to be in violation of any subdivision of section eleven hundred
43 ninety-two or section eleven hundred ninety-two-a of this article not
44 arising out of the same incident, within the five years immediately
45 preceding the date of such revocation; provided, however, a prior find-
46 ing that a person under the age of twenty-one has refused to submit to a
47 chemical test and/or an evaluation conducted by a certified drug recog-
48 inition expert or any portion thereof pursuant to subdivision three of
49 section eleven hundred ninety-four-a of this article shall have the same
50 effect as a prior finding of a refusal pursuant to this subdivision
51 solely for the purpose of determining the length of any license suspen-
52 sion or revocation required to be imposed under any provision of this
53 article, provided that the subsequent offense or refusal is committed or
54 occurred prior to the expiration of the retention period for such prior
55 refusal as set forth in paragraph (k) of subdivision one of section two
56 hundred one of this chapter.

b. Any license which has been revoked pursuant to paragraph (c) of this subdivision or pursuant to subdivision three of section eleven hundred ninety-four-a of this article, where the holder was under the age of twenty-one years at the time of such refusal, shall not be restored for at least one year, nor thereafter, except in the discretion of the commissioner. Where such person under the age of twenty-one years has a prior finding, conviction or youthful offender adjudication resulting from a violation of section eleven hundred ninety-two or section eleven hundred ninety-two-a of this article, not arising from the same incident, such license shall not be restored for at least one year or until such person reaches the age of twenty-one years, whichever is the greater period of time, nor thereafter, except in the discretion of the commissioner.

c. Any commercial driver's license which has been revoked pursuant to paragraph (c) of this subdivision based upon a finding of refusal to submit to a chemical test and/or an evaluation conducted by a certified drug recognition expert or any portion thereof, where such finding occurs within or outside of this state, shall not be restored for at least eighteen months after such revocation, nor thereafter, except in the discretion of the commissioner, but shall not be restored for at least three years after such revocation, nor thereafter, except in the discretion of the commissioner, if the holder of such license was operating a commercial motor vehicle transporting hazardous materials at the time of such refusal. However, such person shall be permanently disqualified from operating a commercial motor vehicle in any case where the holder has a prior finding of refusal to submit to a chemical test and/or an evaluation thereof conducted by a certified drug recognition expert or any portion thereof pursuant to this section or has a prior conviction of any of the following offenses: any violation of section eleven hundred ninety-two of this article; any violation of subdivision one or two of section six hundred of this chapter; or has a prior conviction of any felony involving the use of a motor vehicle pursuant to paragraph (a) of subdivision one of section five hundred ten-a of this chapter. Provided that the commissioner may waive such permanent revocation after a period of ten years has expired from such revocation provided:

(i) that during such ten year period such person has not been found to have refused a chemical test or an evaluation conducted by a certified drug recognition expert or any portion thereof pursuant to this section and has not been convicted of any one of the following offenses: any violation of section eleven hundred ninety-two of this article; refusal to submit to a chemical test or an evaluation conducted by a certified drug recognition expert or any portion thereof pursuant to this section; any violation of subdivision one or two of section six hundred of this chapter; or has a prior conviction of any felony involving the use of a motor vehicle pursuant to paragraph (a) of subdivision one of section five hundred ten-a of this chapter;

(ii) that such person provides acceptable documentation to the commissioner that such person is not in need of alcohol or drug treatment or has satisfactorily completed a prescribed course of such treatment; and

(iii) after such documentation is accepted, that such person is granted a certificate of relief from disabilities or a certificate of good conduct pursuant to article twenty-three of the correction law by the court in which such person was last penalized.

d. Upon a third finding of refusal and/or conviction of any of the offenses which require a permanent commercial driver's license revoca-

tion, such permanent revocation may not be waived by the commissioner under any circumstances.

(2) Civil penalties. Except as otherwise provided, any person whose license, permit to drive, or any non-resident operating privilege is revoked pursuant to the provisions of this section shall also be liable for a civil penalty in the amount of five hundred dollars except that if such revocation is a second or subsequent revocation pursuant to this section issued within a five year period, or such person has been convicted of a violation of any subdivision of section eleven hundred ninety-two of this article within the past five years not arising out of the same incident, the civil penalty shall be in the amount of seven hundred fifty dollars. Any person whose license is revoked pursuant to the provisions of this section based upon a finding of refusal to submit to a chemical test and/or an evaluation conducted by a certified drug recognition expert or any portion thereof while operating a commercial motor vehicle shall also be liable for a civil penalty of five hundred fifty dollars except that if such person has previously been found to have refused a chemical test and/or an evaluation conducted by a certified drug recognition expert or any portion thereof pursuant to this section while operating a commercial motor vehicle or has a prior conviction of any of the following offenses while operating a commercial motor vehicle: any violation of section eleven hundred ninety-two of this article; any violation of subdivision two of section six hundred of this chapter; or has a prior conviction of any felony involving the use of a commercial motor vehicle pursuant to paragraph (a) of subdivision one of section five hundred ten-a of this chapter, then the civil penalty shall be seven hundred fifty dollars. No new driver's license or permit shall be issued, or non-resident operating privilege restored to such person unless such penalty has been paid. All penalties collected by the department pursuant to the provisions of this section shall be the property of the state and shall be paid into the general fund of the state treasury.

(3) Effect of rehabilitation program. No period of revocation arising out of this section may be set aside by the commissioner for the reason that such person was a participant in the alcohol and drug rehabilitation program set forth in section eleven hundred ninety-six of this article.

(e) Regulations. The commissioner shall promulgate such rules and regulations as may be necessary to effectuate the provisions of subdivisions one and two of this section.

(f) Evidence. Evidence of a refusal to submit to such chemical test or any portion thereof or an evaluation conducted by a drug recognition expert or any portion thereof shall be admissible in any trial, proceeding or hearing based upon a violation of the provisions of section eleven hundred ninety-two of this article but only upon a showing that the person was given sufficient warning, in clear and unequivocal language, of the effect of such refusal and that the person persisted in the refusal. Evidence of a refusal shall be admissible pursuant to this section regardless of the time of the refusal.

(g) Results. Upon the request of the person who was tested, the results of such test shall be made available to such person.

3. Compulsory chemical tests. (a) Court ordered chemical tests. Notwithstanding the provisions of subdivision two of this section, no person who operates a motor vehicle in this state may refuse to submit to a chemical test of one or more of the following: breath, blood, urine or ~~saliva~~ oral/bodily fluids, for the purpose of determining the alco-

1 holic and/or drug content of the blood or oral/bodily fluids when a
2 court order for such chemical test has been issued in accordance with
3 the provisions of this subdivision.

4 (b) When authorized. Upon refusal by any person to submit to a chemi-
5 cal test or any portion thereof as described above, the test shall not
6 be given unless a police officer or a district attorney, as defined in
7 subdivision thirty-two of section 1.20 of the criminal procedure law,
8 requests and obtains a court order to compel a person to submit to a
9 chemical test to determine the alcoholic ~~[or]~~ and/or drug content of the
10 person's blood or oral/bodily fluids upon a finding of reasonable cause
11 to believe that:

12 (1) such person was the operator of a motor vehicle and in the course
13 of such operation ~~[a person other than the operator was killed or~~
14 ~~suffered serious physical injury as defined in section 10.00 of the~~
15 ~~penal law]~~ the motor vehicle was involved in a crash; or personal injury
16 has been caused to another person, due to an incident involving the
17 motor vehicle operated by such person or such person has a previous
18 conviction for a violation of any subdivision of section eleven hundred
19 ninety-two of this article; and

20 (2) a. either such person operated the vehicle in violation of any
21 subdivision of section eleven hundred ninety-two of this article, or

22 b. a breath test and/or oral/bodily fluid test administered by a
23 police officer in accordance with paragraph (b) of subdivision one of
24 this section indicates that alcohol and/or a drug or drugs has been
25 consumed by such person; and

26 (3) such person has been placed under lawful arrest; and

27 (4) such person has refused to submit to a chemical test or any
28 portion thereof and/or an evaluation conducted by a certified drug
29 recognition expert, or any portion thereof, requested in accordance with
30 the provisions of paragraph (a) of subdivision two of this section or is
31 unable to give consent to such a test.

32 (c) Reasonable cause; definition. For the purpose of this subdivision
33 "reasonable cause" shall be determined by viewing the totality of
34 circumstances surrounding the incident which, when taken together, indi-
35 cate that the operator was driving in violation of section eleven
36 hundred ninety-two of this article. Such circumstances may include, but
37 are not limited to: evidence that the operator was operating a motor
38 vehicle in violation of any provision of this article or any other
39 moving violation at the time of the incident; any visible indication of
40 alcohol or drug consumption or impairment by the operator; the existence
41 of an open container containing an alcoholic beverage and/or a drug or
42 drugs in or around the vehicle driven by the operator; any other
43 evidence surrounding the circumstances of the incident which indicates
44 that the operator has been operating a motor vehicle while impaired by
45 the consumption of alcohol or drugs or intoxicated at the time of the
46 incident.

47 (d) Court order; procedure. (1) An application for a court order to
48 compel submission to a chemical test or any portion thereof, may be made
49 to any supreme court justice, county court judge or district court judge
50 in the judicial district in which the incident occurred, or if the inci-
51 dent occurred in the city of New York before any supreme court justice
52 or judge of the criminal court of the city of New York. Such application
53 may be communicated by telephone, radio or other means of electronic
54 communication, or in person.

55 (2) The applicant must provide identification by name and title and
56 must state the purpose of the communication. Upon being advised that an

1 application for a court order to compel submission to a chemical test is
2 being made, the court shall place under oath the applicant and any other
3 person providing information in support of the application as provided
4 in subparagraph three of this paragraph. After being sworn the applicant
5 must state that the person from whom the chemical test was requested was
6 the operator of a motor vehicle and in the course of such operation [~~a~~
7 ~~person, other than the operator, has been killed or seriously injured~~]
8 the motor vehicle was involved in a crash; or personal injury has been
9 caused to another person, due to an incident involving the motor vehicle
10 operated by such person and/or such person has a previous arrest for a
11 violation of any subdivision of section eleven hundred ninety-two of
12 this article; and, based upon the totality of circumstances, there is
13 reasonable cause to believe that such person was operating a motor vehi-
14 cle in violation of any subdivision of section eleven hundred ninety-two
15 of this article and, after being placed under lawful arrest such person
16 refused to submit to a chemical test or any portion thereof, in accord-
17 ance with the provisions of this section or is unable to give consent to
18 such a test or any portion thereof. The applicant must make specific
19 allegations of fact to support such statement. Any other person properly
20 identified, may present sworn allegations of fact in support of the
21 applicant's statement.

22 (3) Upon being advised that an oral application for a court order to
23 compel a person to submit to a chemical test is being made, a judge or
24 justice shall place under oath the applicant and any other person
25 providing information in support of the application. Such oath or oaths
26 and all of the remaining communication must be recorded, either by means
27 of a voice recording device or verbatim stenographic or verbatim long-
28 hand notes. If a voice recording device is used or a stenographic record
29 made, the judge must have the record transcribed, certify to the accura-
30 cy of the transcription and file the original record and transcription
31 with the court within seventy-two hours of the issuance of the court
32 order. If the longhand notes are taken, the judge shall subscribe a copy
33 and file it with the court within twenty-four hours of the issuance of
34 the order.

35 (4) If the court is satisfied that the requirements for the issuance
36 of a court order pursuant to the provisions of paragraph (b) of this
37 subdivision have been met, it may grant the application and issue an
38 order requiring the accused to submit to a chemical test to determine
39 the alcoholic and/or drug content of [~~his~~] such accused's blood [~~and~~]
40 and/or oral/bodily fluids and ordering the withdrawal of a blood and/or
41 oral/bodily fluid sample in accordance with the provisions of paragraph
42 (a) of subdivision four of this section. When a judge or justice deter-
43 mines to issue an order to compel submission to a chemical test based on
44 an oral application, the applicant therefor shall prepare the order in
45 accordance with the instructions of the judge or justice. In all cases
46 the order shall include the name of the issuing judge or justice, the
47 name of the applicant, and the date and time it was issued. It must be
48 signed by the judge or justice if issued in person, or by the applicant
49 if issued orally.

50 (5) Any false statement by an applicant or any other person in support
51 of an application for a court order shall subject such person to the
52 offenses for perjury set forth in article two hundred ten of the penal
53 law.

54 (6) The chief administrator of the courts shall establish a schedule
55 to provide that a sufficient number of judges or justices will be avail-

1 able in each judicial district to hear oral applications for court
2 orders as permitted by this section.

3 (e) Administration of compulsory chemical test. An order issued pursu-
4 ant to the provisions of this subdivision shall require that a chemical
5 test to determine the alcoholic and/or drug content of the operator's
6 blood and/or oral/bodily fluid must be administered. The provisions of
7 paragraphs (a), (b) and (c) of subdivision four of this section shall be
8 applicable to any chemical test administered pursuant to this section.

9 § 5. The subparagraph heading and clauses a and b of subparagraph 7 of
10 paragraph (e) of subdivision 2 of section 1193 of the vehicle and traf-
11 fic law, the subparagraph heading as added by chapter 312 of the laws of
12 1994, clause a as amended by chapter 732 of the laws of 2006, and clause
13 b as separately amended by chapters 3 and 571 of the laws of 2002, are
14 amended to read as follows:

15 Suspension pending prosecution; excessive blood alcohol content or
16 impairment by a drug or drugs. a. Except as provided in clause a-1 of
17 this subparagraph, a court shall suspend a driver's license, pending
18 prosecution, of any person charged with a violation of subdivision two,
19 two-a, three, four or four-a of section eleven hundred ninety-two of
20 this article who, at the time of arrest, is alleged to have had .08 of
21 one percent or more by weight of alcohol in such driver's blood or is
22 alleged to have been impaired by the ingestion of a drug or drugs as
23 shown by chemical analysis of blood, breath, urine or [~~saliva~~]
24 oral/bodily fluid, or by an evaluation conducted by a certified drug
25 recognition expert, or any portion thereof, made pursuant to subdivision
26 two or three of section eleven hundred ninety-four of this article, or
27 the driver makes a statement admitting to driving while intoxicated by
28 alcohol or while impaired by a drug or drugs.

29 b. The suspension occurring under clause a of this subparagraph shall
30 occur no later than at the conclusion of all proceedings required for
31 the arraignment and the suspension occurring under clause a-1 of this
32 subparagraph shall occur immediately after the holder's first appearance
33 before the court on the charge which shall, whenever possible, be the
34 next regularly scheduled session of the court after the arrest or at the
35 conclusion of all proceedings required for the arraignment; provided,
36 however, that if the results of any test administered pursuant to
37 section eleven hundred ninety-four of this article are not available
38 within such time period, the complainant police officer or other public
39 servant shall transmit such results to the court at the time they become
40 available, and the court shall, as soon as practicable following the
41 receipt of such results and in compliance with the requirements of this
42 subparagraph, suspend such license. In order for the court to impose
43 such suspension it must find that the accusatory instrument conforms to
44 the requirements of section 100.40 of the criminal procedure law and
45 there exists reasonable cause to believe either that (a) the holder
46 operated a motor vehicle while such holder had .08 of one percent or
47 more by weight of alcohol or was impaired by the ingestion of a drug or
48 drugs in [~~his or her~~] such holder's blood as was shown by chemical anal-
49 ysis of such person's blood, breath, urine or [~~saliva~~] oral/bodily
50 fluid, or by an evaluation conducted by a certified drug recognition
51 expert, or any portion thereof, made pursuant to the provisions of
52 section eleven hundred ninety-four of this article or the driver makes a
53 statement admitting to driving while intoxicated by alcohol or while
54 impaired by a drug or drugs; or (b) the person was the holder of a class
55 DJ or MJ learner's permit or a class DJ or MJ driver's license and oper-
56 ated a motor vehicle while such holder was in violation of subdivision

1 one, two and/or three of section eleven hundred ninety-two of this arti-
2 cle. At the time of such license suspension the holder shall be entitled
3 to an opportunity to make a statement regarding these two issues and to
4 present evidence tending to rebut the court's findings.

5 § 6. Section 1192 of the vehicle and traffic law is amended by adding
6 two new subdivisions 13 and 14 to read as follows:

7 13. It shall be an affirmative defense to a charge under subdivision
8 four or four-a of this section that the operator suffered an allergic
9 reaction or medical emergency rather than being impaired by a substance
10 or combination of substances. Provided, however, that no defense shall
11 be available if any such consumed or ingested substance is contained in
12 section thirty-three hundred six of the public health law.

13 14. The commissioner and the commissioner of the division of criminal
14 justice services shall collect data on the number of traffic stops,
15 arrests and convictions for driving under the influence of drugs or
16 combination of drugs and alcohol under subdivision four or four-a of
17 this section. It shall report the number of traffic stops, arrests and
18 convictions by race, sex, age and national origin and provide an annual
19 report to the governor, the speaker of the assembly and the temporary
20 president of the senate.

21 § 7. This act shall take effect on the first of November next succeed-
22 ing the date on which it shall have become a law and shall expire and be
23 deemed repealed 5 years after such effective date.